LAND APPRAISAL AND RESEARCH SERVICES (PRIVATE) LIMITED

Versus

FLORENCE DUBE

AND

TINY MOYO

AND

ZWELIBANZI MOYO

AND

CONSTANCE MOYO

AND

LAND AND GENERAL VALUATION SURVEYORS AND ESTATE AGENTS AND JARDENERE (PRIVATE) LIMITED

AND

MUNICIPALITY OF VICTORIA FALLS

AND

THE SHERIFF OF THE HIGH COURT OF ZIMBABWE

AND

JANSSON INVESTMENTS (PRIVATE) LIMITED

AND

THE TRUSTEES FOR THE TIME BEING OF THE TADERERA FAMILY TRUST

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 19 MAY AND 4 JUNE 2026

Opposed Application

R. T Hove, for the applicant
No appearance for the 1st – 7th and 9th respondents
J. Mugova, for 8th respondent

KABASA J: - This is an application for rescission of judgment. The cover page of the application described it as one brought in terms of Order 29(1) of the High Court Rules 2021. Only the 8th respondent opposed the application whilst the 1st – 7th and 9th respondents filed no opposing papers and did not appear on the hearing date. This must be an indication that they intend to abide by the decision of the court.

The background to the application is this:-

On 4 August 2018, the 1st – 4th respondents issued summons against the applicant, 5th, 6th and 7th respondent seeking an order compelling the applicant to cede rights, title and interest in stands 1076, 1077, 1078 and 1079 Victoria Falls to the 1st – 4th respondents. The 1st – 4th respondents claimed to have purchased these stands from the applicant's developer and agent (the fifth respondent) on 29 April 2002 and paid for the stands but the applicant and 5th respondent had failed to cede the stands to the 1st – 4th respondents.

The summons were issued following an e-mail sent to the applicant's legal practitioners by a retired Judge of this court in which he stated that he was writing on behalf of the 1st – 4th respondents (his wife and 3 daughters) in connection with the aforementioned stands. He believed the legal practitioners represented the applicants and so sought confirmation for the sake of progress over the cession of the said stands to the 1st – 4th respondents. This e-mail was sent on January 30, 2018. The response by the legal practitioners was sent in July 2018, dated 18 July 2018 wherein the legal practitioners advised that their client had no information on the matter and was therefore requesting the relevant details which detail was to be communicated to them as the applicant had no knowledge of any such sale.

The 1st – 4th respondents thereafter applied for substituted service as they could not locate the 5th respondent upon whom they wanted to serve the summons under HC 2419/18. The application was granted on 21 September 2018 allowing for service through publication in the Chronicle newspaper. After such publication, judgment was granted on 13 December 2018. Stands 1076 and 1077 were subsequently transferred to the 1st and 2nd respondents but the 6th respondent could not transfer stands 1078 and 1079 as these stands had already been alienated and no longer existed, having been sold to a third party and subsequently consolidated into one stand in 2016. The 9th respondent is the registered owner of stand 1076.

The 1st and 2nd respondents subsequently sold their respective stands, 1076 and 1077 to the 8th respondent who commenced developments thereon.

In November 2023 the applicant's Managing Director who is based in Swaziland learnt of the activity on stands 1076 and 1077 which activity he subsequently confirmed in December 2023 on his visit to Zimbabwe. He subsequently learnt of the litigation and the order under HC 2288/18, sought and obtained condonation for late filing of a rescission application, culminating in this application I am now seized with.

It was important to give this detailed background as it is upon these factual matrix that the application for rescission is anchored.

The applicant seeks the following order:-

"1. The application be and is hereby granted.

2. The order in this Honourable Court (sic) issued under case number HC 2288/18 be and is hereby set aside.

3. The applicant be and is hereby directed to file its Appearance to Defend in HC 2288/18 within 10 (ten) days of the granting of this court order.

4. There shall be no order as to costs (if unopposed) alternatively the first, second, third, fourth, sixth and eighth respondents should pay costs of suit on an attorney and client scale should they oppose this application."

In opposing the application, the 8th respondent took a point *in limine*. The applicant also took a point *in limine*. At the hearing of the mater I asked the parties to address me on the points *in limine* as well as the merits. This was to obviate a further hearing should the points *in limine* fail to find favour with the court.

Points *In Limine*

The applicant's point *in limine* sought to non-suit the 8th respondent on the basis that the judgment which is sought to be rescinded is one where the 8th respondent is not a party. The 1st – 4th respondents did not oppose the application and so the application ought to be granted. Counsel for the applicant appeared to have accepted that rescinding the judgment as against the four respondents would mean rescinding it as against the 8th respondent without hearing it and yet it filed opposing papers. Since the judgment cannot possibly be excised so a part relating to the four respondents obtains a default order and the other part continues with arguments as regards the 8th respondent, a default judgment could not possibly be granted.

The 8th respondent was cited in this application as it has a direct and substantial interest in the matter. It bought stand 1076 and 1077. It matters not that it was not a party to the HC 2288/18 order.

The point *in limine* has no merit and is accordingly dismissed.

I turn now to the point *in limine* raised by the 8th respondent. This point is to the effect that the application is fatally defective for it purports to be brought in terms of r 29 yet none of the 3 distinct circumstances under which a r 29 rescission can be anchored was pleaded. A r 27 application for rescission is distinct from a r 29 application. The application's reference to r 29 therefore renders it fatally defective. Counsel for the 8th respondent relied on the decisions in *Madhlayo* v *Megalink Investments (Pvt) Ltd* (724 0f 2022) [2022] ZW HHC 724, for the proposition that the applicable rescission category must be stated.

Rule 29 of the High Court Rules, 2021 provides that: -

> "29(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary -
>
> (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby, or
> (b) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission, or
> (c) an order or judgment granted as a result of a mistake common to the parties."

Rule 27 on the other hand provides that:-

> "27(1) A party against whom judgment has been given in default, whether under these rules or under any other law, may make a court application not later than one month after he has had knowledge of the judgment for the judgment to be set aside, and thereafter …
>
> (2) If the court is satisfied on an application in terms of subrule (1) that there is good and sufficient cause to do so, the court may set aside the judgment concerned and give leave to the defendant to defend or to the plaintiff to prosecute the action…"

The applicant's reference to r 29 which is carelessly referred to as Order 29(1) appears on the cover page of the application. The founding affidavit dealt with r 27 requirements. It zeroed in on the good and sufficient cause which looks at whether there was wilful default, the explanation for the default and a *bona fide* defence with prospects of success.

Counsel for the applicant appeared to take issue with the fact that the point *in limine* was only taken in the heads of argument. A point of law can be taken at any time as long as its

consideration does not cause unfairness or prejudice to the other party. (*Muchakata* v *Netherburn Mine* 1996 (1) ZLR 153 (S) *Trustees, Leonard Cheshire Homes Zimbabwe Central Trust* v *Chite & Ors* 2010 (1) ZLR 631).

The taking of the point *in limine* is therefore in order. The issue is whether it has merit. A reading of the 8th respondent's opposing affidavit shows that it was aware that the application was in terms of r 27 not r 29. The founding affidavit did not cause confusion regarding the applicant's case. It was rooted in r 27 not r 29.

Is the reference to Order 29(1) therefore fatal to the application? I think not. Counsel for the applicant relied on the decision in *Makamba & Anor* v *Magamba eChimurenga & 8 Ors* HH 835-25 where DUBE-BANDA J, after observing that the founding affidavit spoke to a r 27 application and not r 29 went on to state that:-

> "*In casu*, it is only the heading on the cover of the application that speaks to r 29, otherwise the body of the founding affidavit addresses the r 27 jurisdictional requirements. The draft order also speaks to r 27 requirements. The court is not left in a quandary about the nature of the application and under which rule it falls. In my view, this is the kind of confusion and failure to pay attention to detail that may be resolved by the court on the principle in *Zimbabwe Posts (Pvt) Ltd* v *Communication & Allied Services Union* 2016 (1) ZLR 10 (S) and *Yunus Ahmed* v *Docking Station Safaris Private t/a CC Sales* S 70-18."

These remarks apply with equal force *in casu*. The most that can be said is that legal practitioners ought to pay attention to detail and not draft papers as if all that is important is to get them filed at court with no regard to the accuracy of what such papers contain.

Indeed, rules of court are there for a reason and ought to be adhered to, otherwise, why have them? However a slavish adherence to the rules, especially in the circumstances presented *in casu*, would be placing emphasis on form rather than substance. Such an approach inconveniences not only the parties to litigation but the court. This being so as it invariably results in a matter going back and forth before it is finally decided on the merits.

I must make the point that the 8th respondent ought to have proceeded on the basis of the opposing papers which considered the requirements per r 27 and filed heads of argument speaking to the opposition rather than expending energy canvassing r 29 requirements instead of sticking to r 27 requirements.

With that said the point *in limine* was not properly taken. The argument that even the condonation was granted on the basis of a desire to mount a r 29 application for rescission took the 8th respondent's argument no further and did not make it any more attractive. The facts

were presented as they were in this application and so it cannot be said had the application for condonation characterised the rescission that was to be filed as a r 27 one such condonation would not have been granted.

The point *in limine* lacks merit and is accordingly dismissed.

THE MERITS

The requirements for a r 27 rescission were correctly articulated by both counsels. The applicant's argument is that it was not in wilful default. It was not aware of the proceedings, as it did not see the summons which were served through substituted service despite its legal practitioner's response to the correspondence written on behalf of the 1st – 4th respondents. The stands 1076, 1077, 1078 and 1079 are its stands and no Agreement of Sale was ever entered into with the said respondents. No money ever exchanged hands either and so there was nothing justifying the alienation of its stands in favour of the respondents.

The factual matrix upon which the applicant hinges its application are largely common cause. I say so because not only are such facts supported by documentary evidence but the parties who could meaningfully engage with these facts chose not to oppose the application.

The 8th respondent's opposition centred on the fear that it could be prejudiced if the application is granted and the matter is decided on the merits. The 8th respondent deferred to the 1st – 4th respondents on the crucial facts touching on the requirements for a r 27 rescission application.

The question is whether the applicant has satisfactorily met the r 27 rescission application requirements. I will consider the relevant requirements in turn.

Wilful Default

In *Neuman (Pvt) Ltd* v *Marks* 1960 (2) SA 170 (SR) at 173 A-D, wilful default was defined as follows:-

> "The true test, to my mind, is whether the default is a deliberate one – i.e. when a defendant with full knowledge of the set down and of risks attendant on his default, freely takes a decision to refrain from appearing." (See also *Zimbabwe Banking Corporation* v *Masendeke* 1995 (2) ZLR 400 (S), *Mdokwani* v *Shoniwa* 1992 (1) ZLR 269 (S)).

I have already set out the background facts which led to the granting of default judgment. The 1st – 4th respondents were not able to serve the summons on the 5th respondent who they described as the developer and agent of the applicant. Well before the issuance of summons, the applicant's legal practitioner communicated the fact that the applicant was not aware of any sale, asked that documents to that effect, if available, be presented and that if such documents were found these were to be forwarded to the legal practitioners, who, although they had no mandate over the stands issue, they were obviously in a position to not only provide an address for service should litigation ensue but would also communicate with the applicant's Managing Director. They had already done so on receipt of the letter written on behalf of 1st – 4th respondents concerning the stands in issue.

With this background the 1st – 4th respondents decided to issue summons on 24 August 2018, got an order for substituted service on 21 September 2018 and proceed to obtain a default judgment on 13 December 2018.

There is nothing to controvert the applicant's assertion that it was unaware of such litigation. The Managing Director's response communicated through the letter of 18 July 2018 is testimony of the fact that the applicant would not have sat back and deliberately refrained from responding to the summons if such summons had been brought to its attention.

The issue is not that substituted service, once allowed by order of court, amounts to good service. This is not the applicant's argument. The summons were published in the Chronicle newspaper, a newspaper that widely circulates in Matabeleland. The applicant's Managing Director was and is based outside Zimbabwe, the legal practitioners are based in Harare. With no response to the 18 July 2018 letter it cannot be said the legal practitioners, notwithstanding that they had no mandate to deal with the stands issue, ought to have been alert and if they were they could have stumbled on the published summons and alerted the applicant's Managing Director.

When the applicant's Managing Director learnt of the developments on the stands which he knew had not been sold to anyone, did not sit on his laurels. He took action and eventually learnt of the default order, sought condonation to file the present application and once such application was granted, proceeded to lodge this application. This is not the conduct of a litigant who decided to sit back when there was a threat to ownership of not one but four immovable properties.

There was therefore no wilful default. The applicant did not deliberately ignore the summons.

Bona Fides of the Application

The applicant seeks to have the judgment granted in default rescinded so that the matter is decided on merits.

Stands 1078 and 1079 were consolidated and could not be transferred as per the default court order and the applicant's Managing Director's Family Trust has title to stand 1076. An attempt to set aside that title mounted by the 6th respondent suffered a still birth as it was not pursued to its logical conclusion.

The application to set aside the default order is therefore made in good faith. It seeks to allow the applicant to defend its rights to property it says it never sold and never received any money for. The applicant acted promptly when it became aware of the developments at stands 1076 and 1077. Nothing speaks to this application being mounted as a way to frustrate the respondents.

In *Mdokwani* v *Shoniwa* 1992 (1) ZLR 269 (S) the Supreme Court held that the applicant therein had not deliberately defaulted, had remained in communication with his lawyers and had acted promptly once he became aware of default judgment and so concluded that the application for rescission was *bona fide*. I would say the same *in casu*.

***Bona fides* of the defence**

In *Grant* v *Plumbers (Pvt) Ltd* 1949 (2) SA 470 the court had this to say: -

> "It is sufficient if he makes out a *prima facie* defence in the sense of setting out averments which, if established at the trial, would entitle him to the relief asked for. He need not deal fully with the merits of the case and produce evidence that the probabilities were actually in his favour." (See also *Masulani* v *Masulani* 2003 (1) ZLR 491 (H), *Stockil Anor* v *Griffiths* 1992 (1) ZLR 172 (S)).

The applicant has shown that the Agreements of Sale for stands 1076 and 1077 were between an entity called Land and General Valuation Surveyors & Estate Agents & Jardenere (Pvt) Ltd. The applicant was not the seller and yet the stands belonged to it. The Agreements of Sale are not signed by the seller whose whereabouts appears to be a mystery as not only

were the 1st – 4th respondents unable to locate this company in order to serve the summons under HC 2288/28 but the applicant was also unable to locate the same company in order to serve the current application.

The applicant's Managing Director's family Trust holds title to stand 1076 and stands 1078 and 1079 were sold by the applicant to a third party and such stands were consolidated in 2016 such that they are to all intents and purposes non-existent.

If these facts do not make out a *prima facie* defence, which, if established at trial, would entitle applicant to the relief sought, I do not know what would.

The 8th respondent cannot possibly resist the rescission application on the grounds that it was an innocent purchaser who carried out due diligence before buying the property.

If it is proved that the 5th respondent had no right to sell the stands, as the supporting affidavit by one Girison Afia appears to suggest and that the sale was fraudulent, the purported sale would be vitiated and the fact that 8th respondent has obtained title for stand 1077 would not cure that.

The applicant has therefore satisfied all the requirements for a r 27 rescission application.

COSTS

Counsel for the applicant did not pursue the prayer for punitive costs against the 8th respondent. Instead counsel prayed that costs be in the cause.

I agree that this is a case where the appropriate order would be costs in the cause.

In the result, I make the following order:-

1. The application be and is hereby granted.
2. The order issued in default under case number HC 2288/18 be and is hereby rescinded.
3. The applicant be and is hereby directed to file its appearance to defend in HC 2288/18 within 10 days of this order.
4. Costs shall be in the cause.

Hove and Associates, applicant's legal practitioners
Majoko and Majoko, 1st – 4th respondents' legal practitioners
Dube, Nkala and Company, 6th respondent's legal practitioners
Connolly and Hofmeyr, 8th respondent's legal practitioners